

What are the problems of the new Electronic Health Record
Interview with Ginevra Cerrina Feroni, Vice President
of the Data Protection Authority
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Among the major critical issues, "the vulnerability in the security of processing and the discrimination between patients from different Regions" emerge, explains the Vice President of the Data Protection Authority, Ginevra Cerrina Feroni, to Today.it. The Authority raises the alarm about the Electronic Health Record, signaling to the Government and the Ministry of Health the need for urgent intervention and opening a series of "corrective and sanctioning proceedings" against 18 Regions and the Autonomous Provinces of Bolzano and Trento to ascertain violations of privacy regulations.

An investigation conducted by the Authority "has returned an alarming picture regarding the implementation of the reform of the Electronic Health Record 2.0. Several rights of citizens - such as the right to the obscuring of personal data - and various measures (of security, data quality) are not guaranteed, contrary to what is provided for by sector regulations," explains Ginevra Cerrina Feroni, Vice President of the Data Protection Authority, to Today.it.

Patients to Protect

In particular, explains Professor Cerrina Feroni, "a significant heterogeneity has emerged across the national territory that contradicts the spirit of the FSE 2.0 reform, which aims instead to introduce homogeneous measures, guarantees, and responsibilities." The disharmonies observed risk compromising the functionality, interoperability, and efficiency of the Electronic Health Record 2.0 system. "As an Authority, we therefore deemed it necessary to intervene to protect the rights of all Italian patients involved in this delicate type of large-scale health data processing."

The reform of the FSE 2.0 "represents an extraordinary endpoint, as it will allow for a single access portal to the patient's clinical history. The advantages are enormous for the digitization of healthcare and for the territorial continuity of healthcare assistance," emphasizes the Vice President of the Privacy Authority. However, the path of the new Electronic Health Record with examinations, reports, and prescriptions is proving to be anything but simple. "In the report to the Government and the Ministry of Health, we indicated the risks arising from incorrect implementation of the reform of the Electronic Health Record 2.0. I will mention a few: vulnerabilities in the security of processing, discrimination between patients from different Regions, and problems in accessing the synthetic health profile," admits Professor Cerrina Feroni.

Patchy Interventions

The objective of the Electronic Health Record lies both in simplifying access to information during emergencies, visits, or examinations, and in supporting care, scientific research, and health programming. By making the 20 different health records managed by local entities more homogeneous and functional (while preserving the management autonomy of the Regions, the records must "communicate" with each other). Thus, despite its twelve years of existence - and awaiting full implementation in June 2026 - the Electronic Health Record still requires a lot of work for its complete implementation and dissemination (this is also confirmed by a survey by Altroconsumo regarding the "health status" of the FSE, providing a "very heterogeneous" snapshot across various regions of Italy).

"For this reason, in the report, we highlighted the failure of some entities to adopt measures aimed at ensuring the security and integrity of patient data processing. In fact, only some Regions and Autonomous Provinces have ensured these measures so far," concludes the Vice President of the Privacy Authority. It is important to remember that if a citizen's personal information is incorrectly processed, there is an opportunity to file a complaint with the Authority by filling out the appropriate form. And each Region, if it has not already done so, will then need to set up a service for the removal of the most sensitive data that is not intended to be communicated.